Consumer Financial Protection Bureau

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What should I do when a debt collector contacts me?

If a debt collector contacts you, use the opportunity to find out about the debt, which will help determine if they're legitimate and if you really owe it.

When a debt collector (cfpb.gov/askcfpb/330) first contacts you about a debt, they are, in general, legally required to provide you with certain information about the debt (cfpb.gov/askcfpb/331) during that initial communication or within five days of the initial communication. This validation information includes the name of the creditor, the amount you owe, and how to dispute the debt. If the debt collector doesn't or can't provide this information, it could be a scam. **Never give sensitive financial information to the caller, at least not until you've confirmed they're legitimate.**

Also, if the debt collector is collecting a valid debt, avoiding or ignoring their call usually won't make them go away (cfpb.gov/askcfpb/1427) – they may instead find other ways to collect the money from you, including by filing a lawsuit. A debt collector can also help you understand if the debt is yours and what your options are, even if you can't pay right now.

Communicating with debt collectors

In addition to using the validation information to follow up with the debt collector, you can use these sample letters to communicate with them:

- I do not owe this debt. (https://files.consumerfinance.gov/f/documents/cfpb_debt-collection-letter_1-not-my-debt.doc)
- I need more information about this debt. (https://files.consumerfinance.gov/f/documents/cfpb_debt-collection-letter-2_more-information.doc)
- I want the debt collector to stop contacting me. (https://files.consumerfinance.gov/f/documents/cfpb_debt-collection-letter-3_stop-contacting.doc)
- I want the debt collector to only contact me through my lawyer. (https://files.consumerfinance.gov/f/documents/cfpb_debt-collection-letter-4_contact-my-lawyer.doc)

- I want to specify how the debt collector can contact me. (https://files.consumerfinance.gov/f/documents/cfpb_debt-collection-letter-5_heres-how-to-contact-me.doc)

If you use any of these letters, it's important to do so as soon as possible after the debt collector first contacts you, and to keep copies of any letters you send and any other communications. In certain situations, you **only have 30 days** after you're contacted to ask for certain information, but even if more than 30 days pass, it's still a good idea to ask for what you need. **Note: These sample letters are not legal advice.**

If it is not your debt or you already paid it (cfpb.gov/askcfpb/1403), providing documentation can also help your dispute. Ask the debt collector for any evidence they have that indicates you are the correct debtor and what they are relying on to calculate the amount due. You can also notify the debt collector in writing to stop communicating with you. (cfpb.gov/askcfpb/1411)

You have protections against harassment

While talking with a debt collector can be helpful, it's also important to know that you have protections against repetitious, excessive and threatening communications. Under the Fair Debt Collection Practices Act (cfpb.gov/askcfpb/329), debt collectors violate the law when they harass, oppress, or abuse you.

For example, if the debt collector is calling you at an inconvenient time or place, you have the right (cfpb.gov/askcfpb/329) to ask the debt collector to call you at a more convenient time or place you specify.

Learn more about the laws that limit what debt collectors can say or do (cfpb.gov/askcfpb/329)

If you're having an issue with debt collection, you can submit a complaint with the CFPB (https://www.consumerfinance.gov/complaint/).

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What information does a debt collector have to give me about a debt they're trying to collect from me? (cfpb.gov/askcfpb/331)

What laws limit what debt collectors can say or do? (cfpb.gov/askcfpb/329)

Learn more about debt collection (cfpb.gov/consumer-tools/debt-collection/)

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